

File No.: EXP202213024

RESOLUTION OF ARCHIVE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On October 28, 2022, a complaint was filed with registration number REGAGE22e00048676393 before the Spanish Agency for Data Protection against LEAST COST ROUTING TELECOM, S.L. with NIF B82470162 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they received two commercial calls on October 28, 2022, on their mobile line, ***PHONE.1, registered in the advertising exclusion system known as Lista Robinson.

Along with the notification, the following is provided:

- Certificate of registration of the receiving line in the aforementioned system since February 18, 2022.
- Documentary evidence of the two calls received, showing the calling lines: ***PHONE.2 and ***PHONE.3.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on December 9, 2022, as evidenced by the acknowledgment of receipt in the file.

No response has been received to this forwarding letter.

THIRD: On January 28, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

RESULT OF THE INVESTIGATIVE ACTIONS

A request was made on February 10, 2023, and a letter dated February 24 was received by this Agency from the complained party stating that:

Regarding the complained numbers ***PHONE.2 and ***PHONE.3 and calls on 10/28/2022:

The owner of the lines is LEADDESK, S.L. with NIF: B88511092 and address at ***ADDRESS.1.

LEADDESK, S.L. is a Reseller of LEAST COST ROUTING TELECOM, S.L. A contract signed between both parties is attached (See pages 6-12).

The line ***PHONE.2 has been active since July 28, 2022, and is currently active. The line has not been ported or resold.

Upon reviewing our call registration system (HEOS/Redmine with code number 19429), no calls were made from the number ***PHONE.2 on October 28, 2022, to the affected number.

The line ***PHONE.3 has been active since July 8, 2022, and is currently active. The line has not been ported or resold.

Upon reviewing our call registration system (HEOS/Redmine with code number 19429), there is one

call recorded from the number ***PHONE.3 to the affected number on October 27 at 19:27:30. No calls are recorded on October 28.

In this investigation, it is verified that the contract signed between both parties, LCRT and LD, contains an agreement signed on July 6, 2022, and the following annexes:

- Mobile phone service contract
- Contract for the resale of electronic communications products and services dated April 1, 2022
 - o Reseller contract, annex for fixed location voice traffic
 - o Summary of the contract: mobile phone service dated July 7, 2022
 - o Mobile phone service contract dated July 7, 2022

A new letter dated February 24 was received by this Agency from LCRT stating that:

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3/5

1.

Correct the information regarding the status of the holder concerning the claimed lines:

LEADDESK, S.L. (...). In the information provided on February 24, 2023, we indicated that LEADDESK, S.L. acted as a Reseller regarding the lines ***TELÉFONO.2 and ***TELÉFONO.3. (...), we have verified that, to date, all lines contracted by LEADDESK, S.L. with LEAST COST ROUTING, S.L., including the lines ***TELÉFONO.2 and ***TELÉFONO.3, correspond to the Final Customer Contract (attached to this document; business contract, fixed telephony voice services, signed on 26/2/2021), not to the Reseller contract. When the line belongs to a Reseller, it is within a range of 100 sub-assigned numbers by the CNMC, which is not the case for the lines contracted by LEADDESK, S.L. with LEAST COST ROUTING TELECOM, which, to date, are final customer lines. In the case of Resellers, they resell the lines to third parties (Subscribers) who are the ones making the calls. In the case of the Final Customer, it is they who directly make the calls, not a third party.

1.

Update the contact information of LEADDESK, S.L. (Data Protection Officer). Ms. A.A.A. has indicated to us in an email dated March 3, 2023, that she is the Data Protection Officer of LEADDESK, S.L. and that her contact details are as follows:

Email: ***EMAIL.1

Address: LeadDesk Plc, Hämeentie 15, 00500 Helsinki – Finland

Postal requests were made on February 24, April 5, and May 8, 2023, and this Agency received a letter dated June 14 sent by LEADDESK stating that:

The holder of the lines is UpMobile Solutions S.L. with NIF B02682276 and address at ***DIRECCIÓN.2, between 22/9/2022 and 3/5/2023.

As UpMobile has been subject to several complaints before the AEPD, LEADDESK has terminated its agreement and all collaboration with UpMobile on 3/5/2023. Since that date, it is no longer a customer of LeadDesk nor can it make calls from the LEADDESK environment.

The call attempts recorded are: from number ***TELÉFONO.3:

27/10/22 14:47:49 voicemail

27/10/22 17:27:54 voicemail

28/10/22 12:26:53 busy

A postal request was sent to UPMOBILE SOLUTIONS SL on 14/06/2023 and receipt acknowledgment is recorded for 22/06/2023. A reiteration was sent on 7/7/2023 and receipt acknowledgment is still not recorded.

Through a telephone conversation with UpMobile, they state that the postal address is correct, and the request has been sent to the email address C/ Jorge Juan, 6 www.aepd.es 28001 – Madrid sedeagpd.gob.es

4/5

and the interlocutor states that the company is inactive, although this aspect is not reflected in the Commercial Registry.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the competencies attributed to it by other laws."

II

Final provision six, section 2 of LGTel 11/2022

"The right of end users not to receive unwanted calls for commercial communication purposes as provided in Article 66.1.b) shall come into force within one year from the publication of this law in the "Official State Gazette." Until that time, end users of publicly available interpersonal communication services based on numbering may continue to exercise the right to object to receiving unwanted calls for commercial communication purposes made through systems other than those established in Article 66.1.a) and to be informed of this right."

III

Conclusion

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5/5

The investigations conducted by this Agency indicate that the ultimate holder of the numbers from which the calls were made is UPMOBILE SOLUTIONS, S.L., and it has not been possible to confirm the making of the calls by this entity despite multiple requests for information having been made without receiving a response.

Therefore, as it has not been possible to attribute responsibility for the making of the calls and in accordance with what has been indicated by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED WITH THE FILING of the present proceedings.

SECOND: TO NOTIFY this resolution to LEAST COST ROUTING TELECOM, S.L. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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